

[1 EDW. 8. & 1 GEO. 6.] *Kingston upon Hull* [Ch. xvii.]
Provisional Order Confirmation
Act, 1937.



CHAPTER xvii.

An Act to confirm a Provisional Order made by A.D. 1937.
one of His Majesty's Principal Secretaries of —
State under the Public Health Act 1875 relating
to Kingston upon Hull. [29th April 1937.]

WHEREAS the Right Honourable Sir John Simon
one of His Majesty's Principal Secretaries of State
has made the Provisional Order set out in the schedule
hereunto annexed under the provisions of the Public 38 & 39 Vict.
Health Act 1875 : c. 55.

And whereas it is requisite that the said Order should
be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present
Parliament assembled and by the authority of the same
as follows :—

1. The Order set out in the schedule hereunto Order in
annexed is hereby confirmed. schedule
confirmed.

2. This Act may be cited as the Kingston upon Short title.
Hull Provisional Order Confirmation Act 1937.

A.D. 1937.

SCHEDULE.

*Kingston
upon Hull
Order.*

CITY AND COUNTY OF KINGSTON UPON HULL.

*Provisional Order made by the Secretary of State under the
Kingston upon Hull Corporation Act 1907.*

To the lord mayor aldermen and citizens of the city and
county of Kingston upon Hull:—

And to all others whom it may concern.

7 Edw. 7.
c. cvi.

2 & 3 Geo. 5.
c. cli.

12 & 13

Geo. 5.

c. lxxxvi.

17 & 18

Geo. 5. c. lii.

WHEREAS the unrepealed provisions of the Kingston upon Hull Corporation Act 1907 (hereinafter referred to as "the local Act of 1907") as altered by the Kingston upon Hull Corporation Act Provisional Order 1912 which was duly confirmed by the Kingston upon Hull Corporation Act Provisional Order Confirmation Act 1912 and by section 29 of the Kingston upon Hull Corporation Act 1922 (hereinafter referred to as "the local Act of 1922") and by the Kingston upon Hull Order 1927 which was duly confirmed by the Bolton and Kingston upon Hull Provisional Orders Act 1927 are in force in the city and county of Kingston upon Hull (hereinafter referred to as "the city") and the lord mayor aldermen and citizens acting by the council (hereinafter referred to as "the Corporation") are the local authority within the city for the purposes of the local Act of 1907;

And whereas by section 4 of the local Act of 1907 provision is made for the imposition of a penalty for keeping obscene pictures &c. for sale;

And whereas by subsection (5) of section 4 of the local Act of 1907 and of section 29 of the local Act of 1922 and of the Kingston upon Hull Order 1927 as confirmed by the Bolton and Kingston upon Hull Provisional Orders Act 1927 the provisions of section 4 of the local Act of 1907 are limited to expire on the thirty-first day of December one thousand nine hundred and thirty-seven unless they shall have been continued by Act of Parliament or by Provisional Order made by the Secretary of State and confirmed by Parliament which Order the Secretary of State is thereby empowered to make in accordance with the provisions of the Public Health Act 1875 relating to Provisional Orders amending local Acts and in the application of those provisions to the purposes of that section the Secretary of State shall be substituted for the Local Government Board or the Ministry of Health;

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And whereas the Corporation have applied to the Secretary of State for the issue of a Provisional Order to continue in force the provisions of section 4 of the local Act of 1907 for a further period :

A.D. 1937.

—
Kingston
upon Hull
Order.

Now therefore I the Right Honourable Sir John Simon one of His Majesty's Principal Secretaries of State in pursuance of the powers given to me by sections 297 and 303 of the Public Health Act 1875 as applied by subsection (5) of section 4 of the local Act of 1907 and of all other powers enabling me in that behalf hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect (namely) :—

Art. I.—Notwithstanding anything contained in section 4 of the local Act of 1907 the provisions of this section shall continue to be in force in the city until the thirty-first day of December one thousand nine hundred and forty-seven.

Extension of
time for oper-
ation of sec-
tion 4 of local
Act of 1907.

Art. II.—This Order may be cited as the Kingston upon Hull Order 1937.

Short title.

Given under my hand this first day of January one thousand nine hundred and thirty-seven.

JOHN SIMON.

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